

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emmanuel Fashakin, Jr.	Team: Team # 7	CCRB Case #: 200709235	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 06/27/2007 8:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/27/2008	Precinct: 75
Date/Time CV Reported Wed, 06/27/2007 9:48 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 06/27/2007 9:48 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Fontana	15144	931673	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Scott Just	12018	897760	075 PCT
2. POM Michael Langlois	26882	930529	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Vincent Fontana	Force: PO Vincent Fontana struck § 87(2)(b) with an asp.	A . Alleged Victim Uncooperative

Synopsis

At approximately 9:27 PM on June 27, 2007, Sgt. Terrence Creighton called the Internal Affairs Bureau [IAB] to report an incident that had occurred earlier that night at approximately 8:10 PM at § 87(2)(b) in Brooklyn. According to Sgt. Creighton, § 87(2)(b) sustained a cut over his left eye and a scratch on his left arm while resisting arrest for § 87(2)(b). At approximately 9:48 PM on June 27, 2007, § 87(2)(b) on the instructions of her aunt, § 87(2)(b) called the CCRB to report the same incident. Neither § 87(2)(b) nor § 87(2)(b) witnessed the incident, which involved § 87(2)(b) § 87(2)(b) and § 87(2)(b). The following is the narrative provided by § 87(2)(b) during the filing of her complaint.

§ 87(2)(b) and § 87(2)(b) were sitting on the porch when officers pulled up in an NYPD van (plate number CRK2917), dragged them off the porch and arrested them for resisting arrest and possession of marijuana. There were approximately ten to fifteen officers at the scene. § 87(2)(b) sustained injuries to his lip and was bleeding from his face.

The IAB referral report indicated that PO Vincent Fontana struck § 87(2)(b) with his asp, causing the alleged injuries. § 87(2)(g)

§ 87(2)(b) A search of the Booking Arraignment and Dispositions System indicated that PO Scott Just was § 87(2)(b) and § 87(2)(b) arresting officer. While § 87(2)(b) was arrested for § 87(2)(b), § 87(2)(b) in addition to § 87(2)(b) was also arrested for § 87(2)(b). The BADS system also indicated that PO Michael Langlois was the arresting officer for § 87(2)(b) and § 87(2)(b) who were also arrested at the scene for § 87(2)(b). § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

In an attempt to contact § 87(2)(b) and § 87(2)(b) Inv. Ewert made the following investigative actions. On July 3, 2007, Inv. Ewert called § 87(2)(b) and § 87(2)(b) and left a message. A first "please call" letter was sent to all three individuals on July 3, 2007. On July 11, 2007, the undersigned investigator called § 87(2)(b) and spoke to a female respondent who identified herself as his mother, § 87(2)(b). During this conversation, § 87(2)(b) stated that Inv. Ewert's previous messages had been delivered to her son, however, under the instructions of § 87(2)(b), the § 87(2)(b) were waiting until an attorney was hired for them by § 87(2)(b) before appearing at the CCRB. § 87(2)(b) stated that she would call § 87(2)(b) and contact the investigator by the close of the business day on July 11, 2007. During this conversation the undersigned investigator asked § 87(2)(b) about § 87(2)(b) and received the explanation that § 87(2)(b) was § 87(2)(b)'s niece whom she had instructed to call the CCRB and file the complaint. § 87(2)(b) further stated that § 87(2)(b) was the aunt of § 87(2)(b) who was among the arrested defendants, however, § 87(2)(b) was the only one forcefully arrested. § 87(2)(b) did not call the investigator by the close of the business day on July 11, 2007.

On July 13, 2007, the undersigned investigator called the § 87(2)(b) residence and left a message. On July 16, 2007, a final "please call letter" was sent to § 87(2)(b) and § 87(2)(b). On July 17, 2007, the investigator called the § 87(2)(b) residence and spoke to § 87(2)(b). During this conversation, he stated that he did not want to provide a phone narrative of the incident because it was "tearing me up inside." The investigator asked § 87(2)(b) as to the situation regarding his retaining of an attorney and received the response that § 87(2)(b) "was handling that," however, § 87(2)(b) had not contacted the § 87(2)(b). § 87(2)(b) stated he was leaving his residence and would contact the investigator later in the day on July 17, 2007. § 87(2)(b) did not contact the investigator.

After conferring with supervision, the investigator called the § 87(2)(b) residence on July 20, 2007. The investigator left a message stating that the complaint could not be left open indefinitely, therefore, the complaint would be closed if an interview was not scheduled or correspondence regarding § 87(2)(b)'s attorney was not received before the close of the business day on July 25, 2007. Neither § 87(2)(b) nor § 87(2)(b) contacted the investigator by July 25, 2007. On August 1, 2007, § 87(2)(b) called the investigator, stating that he had not retained an attorney and did not follow up with the complaint because he was shaken up by the incident and was scared as a result of the encounter. § 87(2)(b) stated that he had not received any correspondence from § 87(2)(b) in regards to an attorney and had contacted Legal Aid in regards to retaining an attorney. § 87(2)(b) stated that the Legal Aid would call him later in the afternoon on August 1, 2007, in regards to the retaining an attorney. The investigator reiterated to § 87(2)(b) that the case could not be left open without his formal statement. § 87(2)(b) was instructed to contact the investigator by the close of the business day on August 1, 2007, and provide an update as to how he would proceed with the complaint. The investigator received no correspondence from § 87(2)(b) by the close of the business day on August 1, 2007. On August 2, 2007, the investigator called the § 87(2)(b) residence and left a message stating that § 87(2)(b)'s failure to contact the investigator by the close of the business day on August 3, 2007 would result in the closure of the complaint. As of the date of this report, neither § 87(2)(b) nor § 87(2)(b) has contacted the investigator.

In light of the above, it is recommended that the complaint be closed victim uncooperative.

Investigator:	Date:
Supervisor:	Date:
Reviewed by:	Date:
Reviewed by:	Date: